

AMENDED IN ASSEMBLY MARCH 24, 2022

CALIFORNIA LEGISLATURE—2021–22 REGULAR SESSION

ASSEMBLY BILL

No. 2920

Introduced by Assembly Member Arambula

February 18, 2022

An act to amend Section 94875 of *add Section 66031* to the Education Code, relating to ~~private~~ postsecondary education.

LEGISLATIVE COUNSEL’S DIGEST

AB 2920, as amended, Arambula. Postsecondary education: ~~Bureau for Private Postsecondary Education~~. *students with disabilities: inclusive college pilot programs.*

Existing law states the intent of the Legislature that public higher education in California strive to provide educationally equitable environments that give each Californian, regardless of age, economic circumstance, or certain specified characteristics, including mental disability, a reasonable opportunity to develop fully their potential.

This bill, subject to an appropriation for its purposes, would require the California State University, and request the University of California, to establish pilot programs to establish and maintain inclusive college programs for students with intellectual and developmental disabilities at 4-year public postsecondary educational institutions, as provided.

~~Existing law establishes the Bureau for Private Postsecondary Education and provides for its functions and responsibilities.~~

~~This bill would make a nonsubstantive change to these provisions.~~

Vote: majority. Appropriation: no. Fiscal committee: ~~no~~ yes.
State-mandated local program: no.

The people of the State of California do enact as follows:

1 *SECTION 1. (a) The Legislature finds and declares that*
2 *California lacks the programs to provide inclusive college*
3 *opportunities for students with disabilities.*

4 *(b) It is the intent of the Legislature to establish or expand upon*
5 *existing inclusive college programs with the goal of providing*
6 *inclusive college programs for students with intellectual and*
7 *developmental disabilities at public four-year postsecondary*
8 *educational institutions.*

9 *SEC. 2. Section 66031 is added to the Education Code, to read:*

10 *66031. (a) Subject to an appropriation of funds by the*
11 *Legislature in the annual Budget Act or another statute for*
12 *purposes of this section, the California State University shall, and*
13 *the University of California is requested to, establish inclusive*
14 *pilot programs to establish and maintain inclusive college*
15 *programs for students with intellectual and developmental*
16 *disabilities at four-year public postsecondary educational*
17 *institutions. Pilot program funds may be used to establish new*
18 *inclusive college programs at campuses that currently do not have*
19 *a program or have a program in development, or to provide*
20 *continuing support to established inclusive college programs to*
21 *help those programs reach capacity and sustainability.*

22 *(b) An inclusive college pilot program funded pursuant to this*
23 *section shall do all of the following:*

24 *(1) Serve students with intellectual and developmental*
25 *disabilities who are at least 18 years of age, even if the students*
26 *are not taking courses for credit or may not be seeking a traditional*
27 *degree.*

28 *(2) Provide students with a person-centered planning process*
29 *and the opportunity to pursue an educational credential, including,*
30 *but not limited to, a degree, certificate, or nondegree credential*
31 *issued by the institution.*

32 *(3) Provide inclusive academic enrichment, socialization,*
33 *independent living skills, and integrated work experiences that*
34 *develop career skills that can lead to gainful employment.*

35 *(4) Provide individual supports and services for academic and*
36 *social inclusion in academic courses, extracurricular activities,*
37 *housing, and other aspects of campus life.*

1 (5) *Establish strategies to recruit and support students from*
2 *historically underserved communities.*

3 (c) *Pilot program funds may be used for any of the following*
4 *purposes:*

5 (1) *Administrative salaries, including a program director at a*
6 *campus with an inclusive pilot program and other administrative*
7 *staff, including academic coordinators, employment and internship*
8 *coordinators, social inclusion coordinators, and residential*
9 *coordinators.*

10 (2) *Additional program staff, including instructors, peer*
11 *mentors, residential support staff, and administrative assistants.*

12 (3) *Training for higher education faculty in evidence-based best*
13 *practices.*

14 (4) *Augmentation of existing assistive technologies and other*
15 *academic support services offered by campus disability programs*
16 *and resource centers.*

17 (5) *Scholarships for student tuition, fees, and living expenses.*

18 (6) *Additional student supports, including counseling, residential*
19 *needs, mentor services, and transportation services.*

20 (7) *Outreach, including internet website design, disseminating*
21 *information to high school transition programs, local educational*
22 *agencies, special education local planning areas, and college and*
23 *career centers, and advertising placements and campaigns,*
24 *including the cost of printing any materials.*

25 (8) *Data collection and dissemination.*

26 (d) (1) *An inclusive college pilot program shall comply with*
27 *the requirements for, and shall apply for, federal status as a*
28 *Comprehensive Transition and Postsecondary Program so that*
29 *its students can apply for federal financial aid.*

30 (2) *An inclusive college pilot program shall investigate*
31 *long-term sustainability by securing funding from multiple sources,*
32 *including funds from the Department of Rehabilitation, regional*
33 *centers, and financial aid programs.*

34 (e) *For purposes of this section, the following definitions apply:*

35 (1) *“Intellectual and developmental disabilities” has the same*
36 *meaning as “developmental disability,” as defined in paragraph*
37 *(1) of subdivision (a) of Section 4512 of the Welfare and*
38 *Institutions Code.*

39 (2) *“Local educational agencies” means school districts, charter*
40 *schools, and county offices of education.*

1 SECTION 1. ~~Section 94875 of the Education Code is amended~~
2 ~~to read:~~
3 ~~94875. The Bureau for Private Postsecondary Education, as~~
4 ~~established by Section 6 of Chapter 635 of the Statutes of 2007,~~
5 ~~is continued in existence and shall commence operations. This~~
6 ~~chapter establishes the functions and responsibilities of the bureau~~
7 ~~for the purposes of Section 6 of Chapter 635 of the Statutes of~~
8 ~~2007. The bureau shall regulate private postsecondary educational~~
9 ~~institutions through the powers granted, and duties imposed, by~~
10 ~~this chapter. In exercising its powers, and performing its duties,~~
11 ~~the protection of the public shall be the bureau's highest priority.~~
12 ~~If protection of the public is inconsistent with other interests sought~~
13 ~~to be promoted, the protection of the public shall be paramount.~~